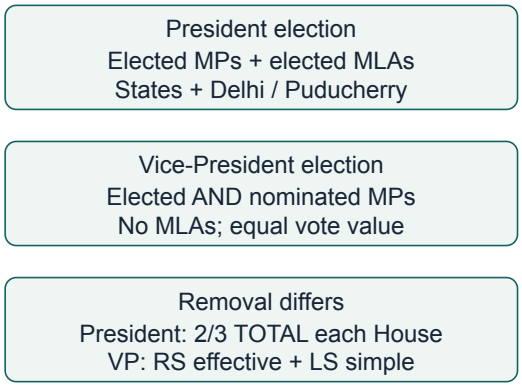
Vice-President

1. Office and electoral college

- **63:** Vice-President; second-highest constitutional office/warrant-of-precedence rank after President; institutional continuity. US office supplied comparison, but succession rules differ.
- **66:** electoral college = **all MPs of both Houses, elected AND nominated**; **no MLAs/MLCs**. No joint meeting required since **11th Amendment, 1961**.
- Secret ballot, constitutional **proportional representation by single transferable vote**; ranked preferences for one office. **Each MP's vote value is one**; no President-style MLA/MP weighting. Quota = **floor(valid votes ÷ 2) + 1**; transfer preferences when needed.
- **71:** SC decides election disputes finally; incomplete college alone no invalidity; acts before void-election declaration remain valid.
- Reason States excluded: ordinary function is presiding over Rajya Sabha; temporary presidential duty exceptional. President, as Union/State head, has elected Assembly participation.



Electoral colleges and removal thresholds differ.

2. Eligibility, nomination and oath

- Indian citizen; **35+**; qualified for **Rajya Sabha election** (President: LS); no prohibited office of profit. Sitting President/VP, Governor, Union/State Minister exempted for eligibility.
- **20 proposers + 20 seconders; ₹15,000 deposit**. Presidential rule is **50+50**, not interchangeable. Statutory forfeiture for unsuccessful candidate at **not more than one-sixth of votes necessary for election**, not ordinary constituency rule.
- **69 oath:** true faith/allegiance to Constitution; faithfully discharge office. **President or appointed person administers**, not necessarily CJI. Presidential oath separately stresses preserve/protect/defend Constitution.
- Cannot remain member of Parliament/State legislature; seat vacated on entry; no other office of profit. **Ex-officio RS Chairman is not an RS member**.

3. Term, resignation and removal

- **67:** five years from entry; may be re-elected repeatedly; holdover until successor enters; resign to **President** (President resigns to VP).
- Removal initiated **only in Rajya Sabha** after **at least 14 days' notice**. RS passes by **majority of all then members** (effective majority: total minus vacancies); LS agrees by **simple majority**.
- **No impeachment**, no specified constitutional removal ground; distinguish President's **two-thirds total membership in both Houses** procedure.
- During own-removal-resolution consideration, VP does not preside; may speak/participate under **92**, but cannot vote on that resolution or any other matter in those proceedings. Normally Chairman only exercises **casting vote on equality**, not ordinary first-instance vote.



Article 67: only Rajya Sabha initiates.

4. Vacancy and presidential duty

- Term-end election before expiry. Casual vacancy (death/resignation/removal/disqualification/void election): election **as soon as possible**, **no constitutionally specified six-month VP-vacancy deadline**. Successor gets **full five years**.
- **65:** during casual presidential vacancy, VP acts until new President enters; presidential election due **within six months**. For temporary presidential incapacity, discharges functions until President resumes; do not apply six months as blanket limit to every incapacity case.
- While acting/discharging President, **does not chair RS**; Deputy Chairman performs duties (other constitutional arrangements if unavailable). Receives presidential powers/immunities/emoluments, **not both salaries**.
- **70:** Parliament provides other presidential-function contingencies; if both offices unavailable, CJI/senior-most available SC judge under 1969 Act.
- **India:** acting President temporarily; **USA:** VP succeeds to Presidency for remainder of predecessor's term. No automatic Indian succession for unexpired term.

5. Emoluments and historical examples

- No separate VP-capacity salary: remuneration as **RS Chairman**. Finance Act 2018 raised it to **₹4 lakh/month**, effective **1 January 2016**; pension under law **50% of corresponding emoluments**, with residence/medical/travel benefits. Acting President receives presidential remuneration instead.

- **V.V. Giri acted after Zakir Husain's death (1969); B.D. Jatti after Fakhruddin Ali Ahmed's death (1977)**. Radhakrishnan discharged functions during Rajendra Prasad's **1960 USSR visit/1961 illness**.
- **Krishna Kant:** first VP to die in office (2002). **Radhakrishnan and Hamid Ansari** each elected twice. Nickname “His Superfluous Highness” reflects commentary about limited independent executive functions, not constitutional designation.

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6. Election chronology

- **1952/1957 S. Radhakrishnan - unopposed**; **1962 Zakir Husain** (568; rival N. Samant Singh 14); **1967 V.V. Giri** (486; Prof. Habib 192).
- **1969 G.S. Pathak** (400; H.V. Kamath 156); **1974 B.D. Jatti** (521; N.E. Horo 141); **1979 M. Hidayatullah - unopposed**.
- **1984 R. Venkataraman** (508; B.C. Kamble 207); **1987 Shankar Dayal Sharma - unopposed**; **1992 K.R. Narayanan** (700; Kaka Joginder Singh 1).
- **1997 Krishna Kant** (441; Surjit Singh Barnala 273); **2002 B.S. Shekhawat** (454; Sushil Kumar Shinde 305); **2007 Hamid Ansari** (455; Najma Heptulla 222); **2012 Ansari** (490; Jaswant Singh 238).
- **2017 M. Venkaiah Naidu** (516; Gopal Krishna Gandhi 244); **2022 Jagdeep Dhankhar** (528; Margaret Alva 182). These are chapter's historical election results.
- **2025 update: C.P. Radhakrishnan elected**, **452 vs B. Sudershan Reddy 300**, sworn **12 September 2025**; **15th person** to hold office because repeated elections are not new office-holders. Official announcement · Akashvani result.

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7. One-minute recall

- **All MPs / no MLAs / equal vote; 35 years / RS eligibility / 20+20 / ₹15,000. Five years; resign to President.**
- **Removal: RS effective + LS simple + 14-day notice; no impeachment. VP vacancy ASAP; presidential vacancy election six months.**
- **RS Chairman ≠ RS member; no chairing RS while acting as President; India acting succession ≠ US permanent succession.**

Reference

- Official Constitution: Articles 63-71 and 92.
- ECI: VP election procedure.